

GUIDE · TRUST ADMINISTRATION

HEMS, *in practice.*

Health, Education, Maintenance, and Support: the standard that guides how trust funds get used. A practical look at what falls inside each letter, and what falls outside.

Prepared by **Derek Carrillo, Esq.**

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HEMS lets a trustee meet a beneficiary's genuine needs while preserving the trust's protective shell against creditors, divorce, and impulse. The four letters look simple; in practice the line between "covered" and "not covered" is where the standard earns its keep. The examples below are illustrative, not exhaustive.

Health

Expenses should be reasonable and medically necessary, not cosmetic or extravagant, unless there is a clear health reason.

Medical care	Physician and hospital bills · emergency visits · specialist consultations · surgery and procedures · physical and occupational therapy
Prescriptions	Pharmacy costs · durable medical equipment such as insulin pumps and mobility aids
Dental & vision	Routine dental, fillings, root canals, orthodontics · eye exams, glasses, contacts, LASIK
Mental health	Psychotherapy and counseling · psychiatric treatment · substance-abuse rehabilitation
Preventive & holistic	Health-insurance premiums · routine check-ups and vaccinations · acupuncture and chiropractic care
Long-term care	Home health aides · assisted living and nursing-home costs · memory care

Education

Expenses should be reasonable and tied to actual learning or training. The standard accommodates traditional schooling, vocational paths, and meaningful enrichment alike.

Traditional schooling	Tuition (K-12, college, graduate) · room and board · books, lab fees, and course materials
Technology	A laptop or tablet for school use · required educational software and subscriptions
Study-related travel	Airfare and housing for study abroad · travel to and from school · school-sponsored educational tours
Tutoring & test prep	Private tutoring · SAT, ACT, GRE, LSAT, MCAT prep · academic coaching

Vocational training	Trade-school tuition · flight school · apprenticeships and certification programs
Continuing education	Professional development · skill-building courses · art or music instruction

Maintenance

Maintenance covers what is needed to keep the beneficiary's current standard of living, without raising it much or letting it slip.

Housing	Rent or mortgage · property taxes · homeowner's insurance · repairs and upkeep · utilities
Transportation	Car payments and insurance · fuel and maintenance · public transit or rideshare
Day-to-day living	Groceries and household supplies · clothing and personal care · phone and internet
Lifestyle continuity	Club memberships consistent with prior lifestyle · reasonable travel · pet care · housekeeping

Support

Support overlaps with maintenance and contemplates a beneficiary's reasonable standard of living. Luxury, extravagance, and discretionary speculation generally fall outside.

Family support	Spousal or minor-child support consistent with usual obligations · childcare · health-insurance premiums
Work & career	Interview and work-appropriate clothing · job-related moving expenses · career development not covered as education
Financial obligations	Necessary loan or debt repayment · reasonable tax obligations · life-insurance premiums benefiting dependents
Emergency support	Legal fees on trust-relevant matters · aid during temporary unemployment, disability, or crisis

WHERE HEMS DOES NOT REACH

Luxury vehicles beyond reasonable need, speculative investments, gambling, gifts to non-beneficiaries beyond modest amounts, and purchases inconsistent with the beneficiary's established standard of living. The trustee's job is to read the standard reasonably and to write down the reason for every distribution.

Why the line matters

The HEMS language does real work. It is what lets a trust protect a beneficiary from a future creditor, a lawsuit, or a bankruptcy. A trustee who keeps distributions *within* the standard preserves that protection. A trustee who goes outside it can weaken the trust's protections, sometimes for good.

IF YOU ARE A TRUSTEE

Document every distribution decision. A short note in the file, covering what was requested, what was approved, and why it fits within HEMS, is the single most useful protection against a future challenge.

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Derek Carrillo, Esq.

Founder & Managing Attorney · Premier Estate Planning

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CONTACT

PHONE

813.330.0697

EMAIL

info@premier.law

LOCATION

Tampa, Florida

WEB

premier.law

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